



CHAPTER cxxvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dunfermline and District Tramways. [18th August 1911.] A.D. 1911.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Viet. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Dunfermline and District Tramways Order Confirmation Act 1911. Short title.

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SCHEDULE.

DUNFERMLINE AND DISTRICT TRAMWAYS.

*Provisional Order to extend the time for the construction of certain
Tramways authorised by the Dunfermline and District
Tramways Order 1906 to revive the powers and
extend the time for the acquisition of Lands in connexion
therewith and for other purposes.*

WHEREAS by the Dunfermline and District Tramways Order 1906 (in this Order called "the Order of 1906") the Dunfermline and District Tramways Company (in this Order called "the Company") was incorporated with a share capital of one hundred and fifty thousand pounds and with power to borrow fifty thousand pounds and authorised to construct the tramways therein described and to execute the street and other works therein mentioned :

And whereas by the Dunfermline and District Tramways (Extensions) Order 1910 (in this Order called "the Order of 1910") the Company was authorised to raise additional share capital to the amount of ninety thousand pounds and to borrow a further sum of thirty thousand pounds and to construct additional tramways in extension of their tramway system :

And whereas the Company has created and issued one hundred and thirty-two thousand seven hundred and ten shares of one pound each and such shares are fully paid up and has also created and issued two thousand shares of one pound each of which four shillings have been paid up :

And whereas the time limited by the Order of 1906 for the compulsory acquisition of the lands required for the said street works expired on the twenty-first day of December one thousand nine hundred and nine and the time limited by the Order of 1906 for the completion of the tramways by that Order authorised will expire on the twenty-first day of December one thousand nine hundred and eleven :

And whereas the Company has constructed and opened for the public conveyance of passengers the whole of the tramways

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authorised by the Order of 1906 with the exception of Tramways Nos. 1 2 13 and 13A and portion of Tramway No. 3: A.D. 1911.

And whereas it is expedient that the time limited by the Order of 1906 for the completion of the said Tramways Nos. 1 2 3 13 and 13A should be extended and that the powers of acquiring compulsorily the lands required for the Street Works A F and G by that Order authorised should be revived and that the period within which such last-mentioned powers may be exercised should be extended as by this Order provided:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Dunfermline and District Tramways Order 1911 and the Order of 1906 the Order of 1910 and this Order may be cited together as the Dunfermline and District Tramways Orders 1906 to 1911 This Order shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order.” Short titles and commencement of Order,

2. The powers granted by the Order of 1906 for the compulsory purchase of lands for the purposes of the Street Works A F and G by the Order of 1906 authorised are hereby revived and extended and shall continue in force and may be exercised by the Company for a period of two years from the twenty-first day of December one thousand nine hundred and eleven and on the expiration of that period those powers shall cease. Revival and extension of time for acquisition of lands.

3. The powers granted by the Order of 1906 for the construction of Tramways Nos. 1 2 and 3 by the Order of 1906 authorised are hereby extended and may be exercised by the Company for the period of two years and the powers granted by the Order of 1906 for the construction of Tramways Nos. 13 and 13A by the Order of 1906 authorised are hereby extended and may be exercised by the Company for the period of three years and six months from the twenty-first day of December one thousand nine hundred and eleven and section 14 (Period for completion of tramways) of the Order of 1906 shall be read and construed as if the respective periods limited by this Order Extension of time for completion of tramways

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A.D. 1911. for the completion of the said tramways had been the period limited by that Order for the completion thereof and sections 77 (Power to pay interest out of capital during construction) 78 (Tramways deposit fund not to be repaid except so far as tramways are opened) and 79 (Application of deposit fund) of the Order of 1906 shall be read and construed as if the respective periods by this Order limited for the completion of the said tramways had been the period limited by the Order of 1906 for the completion thereof.

If the said Tramways Nos. 1 2 and 3 are not completed within the said period of two years and the said Tramways Nos. 13 and 13A are not completed within the said period of three years and six months then on the expiration of those periods respectively the powers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Provision as
to general
Tramway
Acts.

4. Nothing in this Order contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised to be taken by the Company.

Costs of
Order.

5. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company.

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